

Line 3

Case Name: *MV Campbell, LLC v. MOD Super Fast Pizza (California), LLC, et al.*

Case No.: 24CV442743

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Plaintiff MV Cambell, LLC (“Plaintiffs”) moves under Code of Civil Procedure Sections 2030.290(b) and 2031.300(b) to compel Defendants MOD Super Fast Pizza (California) and Mod Super Fast Pizza, LLC (“Defendants”) to respond to Plaintiff’s Specially Prepared Interrogatories, Set One (“Special Interrogatories”), and Plaintiff’s Request for Production of Documents, Set Two (“RFPs”). Notice of Motion (the “Motion”) at 2:2-15 (filed: Jan. 29, 2026). Moreover, Plaintiff moves for sanctions under Code of Civil Procedure Section 2030.290(c) in the amount of \$1,960.00 for Plaintiff’s attorneys’ fees and costs for this Motion. *Id.* at 2:16-20.

The Motion came on for hearing on September 11, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

On November 21, 2025, Plaintiff properly served Defendants with Plaintiff’s Code-Compliant RFPs. Declaration of attorney Karsyn Stewart In Support of Motion (“Stewart Decl.”) at ¶¶ 4, 7. And on November 26, 2025, Plaintiff properly served Defendants with Plaintiff’s Code-Compliant Special Interrogatories, Set One. *Id.* at ¶¶ 3, 6.

Under California law, Defendants had a clear duty to provide timely, Code-Compliant responses to these discovery requests.

To be timely, Defendants’ responses to the RFPs were due within 30 days after service of them on Defendants on November 21, 2025. C.C.P. § 2031.260. Likewise, Defendants’ responses to the Special Interrogatories were due within 30 days after service of them on Defendants on November 26, 2025. C.C.P. § 2030.260

To be Code Compliant, Defendants’ responses must:

- For these Special Interrogatories, comply with Code of Civil Procedure Sections 2030.210 & 2030.220 by providing answers to each interrogatory that are as complete and straightforward as the information reasonably available to Defendants permits; C.C.P. §§ 2030.210 & 2030.220; *and*
- For these RFPs, comply with Code of Civil Procedure Sections 2031.210-2031.230 by stating:

(a) Defendants will comply with the RFPs—*and* then produce the documents and items requested;

(b) Defendants are unable to comply with the RFP because the requested documents and items have never existed; or

(c) after diligent search and reasonable inquiry, Defendants are unable to comply because the requested documents and items no longer exist or are no longer in his possession.

C.C.P. §§ 2031.210, 2031.220, 2031.230.

Now, more than 9 months after these Special Interrogatories and RFPs were served on Defendants, it is undisputed that Defendants have not provided timely, Code-Compliant responses; indeed, Defendants have not responded to these discovery requests at all. Stewart Decl. at ¶¶ 5, 8. And Defendants ignored Plaintiff's good-faith attempts to meet and confer to resolve this discovery dispute. *Id.* at ¶ 9.

Because Defendants violated their duty to provide timely, Code-Compliant responses to these discovery requests, Plaintiff asserts that Plaintiff is entitled now to an Order:

- Ruling that Defendants have waived all objections to these Special Interrogatories and RFPs, including those based upon privilege or work product protection, under Code of Civil Procedure Sections 2030.290(a) and 2031.300(a);
- Compelling Defendants to provide Verified Responses to the Special Interrogatories and RFAs, including all responsive documents that are in Defendants' possession, custody, or control; and
- Awarding Sanctions against Defendants in the amount of \$1,960.00 for Plaintiff's reasonable attorneys' fees and costs incurred for this Motion.

Pl. Memorandum of Points & Authorities in Support of Motion at 5:4-6:23.

Defendants do not argue otherwise. Indeed, Defendants have not opposed the Motion at all, which the Court views as Defendants conceding the Motion in its entirety. *D.I. Chadbourne, Inc. v. Super. Ct.* (1964) 60 Cal.2d 723, 728, fn. 4.; California Practice Guide: Civil Procedure Before Trial ¶ 9:105.10, Ch. 9 at pp. 94-95 (failure to file opposition papers to motion is treated "as an admission that the motion is meritorious") (Weil & Brown, The Rutter Group, 2025 Ed.); *see also* Rule of Court 8.54(c): "A failure to oppose a motion may be deemed a consent to the granting of the motion." CRC Rule 8.54(c).

The Court further notes that Plaintiff's request for monetary sanctions against Defendants in the total amount of \$1,960.00 for Plaintiff's attorneys' fees and expenses

incurred in making this Motion is well supported (Stewart at ¶¶ 12-13), reasonable in all respects,³ and authorized by law under Code of Civil Procedures §§ 2030.290(c), 2031.300(c), and 2023.010(d).

Accordingly, the Court **GRANTS** the Motion in all respects. Specifically, the Court **ORDERS that within 30 days of today:**

- (1) Defendants will provide full and complete Code-Compliant responses to: (1) Plaintiff's Specially Prepared Interrogatories, Set One; and (2) Plaintiff's Request for Production of Documents, Set Two, *and* will produce all the requested documents that are responsive to those discovery requests;⁴ and
- (2) Defendants will pay Plaintiff \$1,960.00 for Plaintiff's reasonable attorneys' fees and costs for this Motion.

Defendants are further put on **NOTICE** that if they fail to comply with this Order within 30 days of today, they may be subject to further escalating monetary and non-monetary sanctions including but not limited to issue, evidentiary, and terminating sanctions.

SO ORDERED.

Date: September 11, 2026

Vincent I. Parrett
Judge of the Superior Court of California,
County of Santa Clara

³ Specifically, the Court finds that the hourly rates sought and the number of hours sought for Plaintiff's attorneys' fees here, as well as the costs sought for the filing fee for this Motion, as set forth in detail in the Stewart Declaration, are reasonable in all respects.

⁴ Moreover, all objections to these Interrogatories and RFPs, including those based on privilege or work product protection, are waived by Defendants as explained above.

Line 4

Case Name: *Hassan Abpikar, et al. v. State Farm Insurance, et al.*

Case No.: 24CV436896

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant State Farm Mutual Automobile Insurance Company (sued as State Farm Insurance and State Farm Insurance Agency) (“Defendant State Farm” or “Defendant”) Defendant moves under Code of Civil Procedure Section 2023.030, and the inherent power and authority of the court to manage legal proceedings, for terminating sanctions or, in the alternative, issue and monetary sanctions against Plaintiffs Hassan Abpikar and Albert Nichols (“Plaintiffs”). Notice of Motion (the “Motion”) at 2:5-9 (filed: July 22, 2025). The Motion is made on the ground that Plaintiffs have engaged in misuse of the discovery process by willfully failing to comply with the Court’s March 14, 2025 Orders to pay Defendant State Farm sanctions and to provide verified, Code-Compliant discovery responses. *Id.* at 2:9-11.

The Motion came on for hearing on September 11, 2026, at 9:00 AM in Department 16. After reviewing the moving papers, including the Declaration of Alexandria C. Carraher in Support of Defendant’s Motion (“Carraher Decl.”) plus its Exhibits and Defendant’s Separate Statement in Support of Defendant’s Motion, and the Opposition papers, including the Declaration of Hassan Abpikar in Support of Opposition plus its Exhibits,⁵ and Defendant’s Reply papers, including the Declaration of Stephanie J. Rothberg in Support of Defendant’s Reply in Support of Motion (“Rothberg Decl.”) plus its Exhibits and Defendant’s Request for Judicial Notice In Support of Defendant’s Reply in Support of Motion, and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Relevant Facts & Procedural Posture

On April 29, 2024, Plaintiffs filed this civil action in Santa Clara County Superior Court, Case No. 24CV436896, against Defendants State Farm, American Honda Financial Corp. and GAP Insurance. Complaint (filed: Apr. 29, 2024).

⁵ The Court has received but, in the broad exercise of its discretion chooses to give no weight whatever to, the Request for Judicial Notice filed by Plaintiffs on September 9, 2026, two days before this hearing, because it is an untimely, unauthorized, and improper sur-reply brief that does not ask for Judicial Notice of any matter properly noticeable under California law but rather indulges in sustained and scurrilous *ad hominem* attacks on defense counsel, whom they call “**Mr. Honest Legal Thief . . . you are NOT even a MAN. . . .**” Plaintiffs’ Request for Judicial Notice at p. 4 (emphasis in original).